

Shekhar Nigam vs Smt. Ekta Nigam on 5 March, 2018

THE HIGH COURT OF MADHYA PRADESH
MCRC-10846-2017
(SHEKHAR NIGAM Vs SMT. EKTA NIGAM)

5

Jabalpur, Dated : 05-03-2018

Mr. Anil Khare, learned senior counsel along with Mr. J.S. Hora, advocate for the petitioner.

None for the respondent despite service of notice.

Heard.

sh This petition has been preferred under Section 482 of the Cr.P.C.

e for invoking the extraordinary jurisdiction of this Court and to quash ad the order dated 13.07.2015 passed in Criminal Complaint Case Pr No.181/2015, by learned JMFC, Jabalpur whereby cognizance has been taken against the petitioner under Section 31 of the Protection of a hy Women from Domestic Violence Act, 2005 (in short â the Act, 2005â) and to set aside the consequential proceeding.

ad

2. Learned JMFC vide order dated 25.07.2013 passed in MJC M No.22/2013, on the application under Section 23 (1) (2) of the Act, 2005 directed interim maintenance at the rate of Rs.10,000/- per of month for the respondent and Rs.5,000/- towards the minor child.

rt

3. On behalf of the petitioner it is claimed that the marriage of the ou petitioner with the respondent was solemnised on 20.11.2009. On 13.06.2012, the petitioner husband filed a petition for divorce under C Section 13 of the Hindu Marriage Act. Notice of the same was h received by the respondent wife on 09.07.2012. The respondent wife ig lodged a criminal complaint before Mahila Thana under Section 498- H A of the IPC and Sections 3 and 4 of the Dowry Prohibition Act on 17.07.2012. It is claimed that immediately after receiving the notice of the divorce case, the respondent wife for wreaking vengeance has lodged the report. Subsequently on 15.02.2013, she lodged the complaint under the Protection of Women from Domestic Violence Act. She also lodged an application under Section 125 of the Cr.P.C. on 06.02.2013.

4. It is claimed that the petitioner has been directed to pay interim maintenance of Rs.10,000/- to the respondent is not good in the eyes of law, for the Second Principal Judge, Family Court, 1955 Jabalpur in Civil Suit No.273-A/2013 vide judgment dated 06.01.2017 passed a decree of divorce under Section 13 (1) (1-a) of the Hindu Marriage Act on the ground that the respondent wife is living

an adulterous life. Learned Family Court has disallowed CS No.156-A/2013 filed by the respondent wife for restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955.

5. It is also claimed that vide order dated 07.01.2017, learned Second Additional Principal Judge, Family Court in MJC sh No.223/2013 dismissed the application under Section 125 of the Cr.P.C. filed by the respondent wife for she is living an adulterous life.

ad Hence she is not entitled to any maintenance. However, maintenance Pr to the child has been allowed at the rate of Rs.5,000/- per month. It is further claimed that maintenance of the married wife during a subsistence of the marriage is on the husband and it is a personal hy obligation. Though the divorced wife is also entitled for maintenance ad till she enters in to a second marriage but a wife who is leading an M adulterous life, has no right to maintenance. A consistent conduct and living in permanent or quasi permanent adulterous life relationship of of the wife is the paramount has to be proved. In civil case for divorce and quasi criminal case for maintenance findings have been given by rt the Family Court. It is claimed that the respondent wife is therefore, ou not entitled to any relief of interim maintenance as has been ordered C under the Protection of Women from Domestic Violence Act. h

6. Respondent has deliberately not participating in the case. The ig finding of the Family Court in the judgments dated 06.01.2017 and H 07.01.2017 in MJC No.223/2013 under Section 125 of the Cr.P.C it has been observed in both the cases, it has been found that there is sufficient reason to believe that the respondent is leading adulterous life, and there is no sufficient reason to live separately.

7. The principle of granting maintenance to the non-applicant wife is guided by the same principles provided under Section 125 of the Cr.P.C. Interim order granting maintenance to the respondent wife under Section 23 of the Protection of Women from Domestic Violence Act, is also governed by the same principles. If the Magistrate is satisfied that the application prima facie discloses that the husband is committing or has committed the act of domestic violence or there is likelihood that the husband may commit an act of domestic violence, he may grant an ex parte order on the basis of affidavit as may be prescribed in such form.

8. Learned JMFC passed the order on 25.07.2013 in MJC No.22/2013 when decree of divorce or application for maintenance were not decided. Therefore, learned JMFC had passed the order of interim maintenance. For non-depositing the maintenance to the respondent, the proceeding is going on against the petitioner husband.

sh The revision filed by the petitioner against the order dated 25.07.2013 e was dismissed on 19.02.2015 by 10th ASJ, Jabalpur with slight ad modification.

9. Pr In the decision rendered in the case of Rachna Kathuria v. Ramesh Kathuria (decided by High Court of Delhi in CrI.M.C. a No.130/2010 on 30.08.2010) it has been observed that â Protection hy of Women from Domestic Violence Act, 2005 does not create any ad additional right to claim maintenance on the part of the aggrieved M person. It only puts the enforcement of existing right of

maintenance available to an aggrieved person on fast track. If a woman living of separate from her husband had already filed a suit claiming maintenance and after adjudication maintenance has been determined by a competent Court either in Civil Suit or by Court of Magistrate in an application under Section 125 of the Cr.P.C., she does not have a right to claim additional maintenance under the Act.â h

10. In the case of Smt. Kanchan v. Vikramjeet Setiya, 2013 13 Cr.L.J. 85, wherein the High Court of Rajasthan has observed that the orders of monetary relief under the provisions of the Protection of Women from Domestic Violence Act, 2005 shall be executed in the manner provided under Section 125 of the Cr.P.C but with the modification that no formal application shall be required for such an execution and as soon as the order is passed under Section 12 or 23 of the Act, 2005 for directing the monetary relief, the Court, after the period provided for appeal is over, shall suo motu issue warrant of recovery.

11. In the case of Smt. Kanchan (supra) it has been held that non-compliance of an order of monetary relief does not give rise to the consequence of Section 31 of the Act, 2005. However, a larger Bench of this Court has differed with the above view. But keeping in view the fact that the principles of maintenance would be applicable as provided under Section 125 of the Cr.P.C. further grant of maintenance to the respondent wife despite the finding that she is leading an adulterous life, would not be correct.

12. In view of the preceding analysis, this petition is allowed and it would be appropriate to hold that the respondent wife is not entitled to receive the maintenance from 06.01.2017 when learned Second Additional Principal Judge, Family Court, Jabalpur in Civil Suit No.273-A/2013 passed a decree of divorce under Section 13 (1) (1-a) of the Hindu Marriage Act on the ground that the respondent wife is living an adulterous life.

Pr a (SUSHIL KUMAR PALO) by JUDGE ad M Date: 2018.03.21 03:38:41 -07'00' of ks rt ou C h ig H